

The abandonment sequence — June to November 2024

WC/2024/227 · built 23 August 2026 from the show cause letter (K-CF24/3196), the confirmation letter (K-CF24/3270) and the reply email · internal working document, not for service

When	What	Source
Mon 3 Jun 2024	Last day of attendance at a rostered shift. “Your last day of attendance for a rostered shift was 3 June 2024”	Confirmation letter
7–12 Jun 2024	Approved leave: 7 Jun recreation in lieu of sick; 8 Jun sick and recreation in lieu; 9 Jun sick; 10 Jun leave without pay; 11–12 Jun bereavement	Confirmation letter
from 13 Jun 2024	Placed on leave without pay	Confirmation letter
Tue 18 Jun 2024	Pleaded date of injury	Amended SOFC
Fri 21 Jun 2024	Last correspondence Ms Taylor records receiving from him	Confirmation letter
Mon 1 Jul 2024	Application for compensation; first medical certificate, Dr P Hawes	Repo
Mon 15 Jul 2024	Text to the Line Manager’s personal phone — “the last reported contact” on the employer’s account	Show cause letter
Fri 13 Sep 2024	WorkCover Queensland reasons for decision	Repo · Respondent’s list item 2
Thu 19 Sep 2024	■ The employer’s letters twice state the claim was declined on this date, and the show cause letter states the last day of work “will be considered to be” 19 September 2024	Both letters
Fri 20 Sep 2024, 8:38 am	Line Manager emails re the work capacity checklist and leave balances	Show cause letter
Tue 24 Sep 2024, 11:16 am	Line Manager text	Show cause letter
Wed 25 Sep 2024, 8:32 / 8:43 am	Line Manager telephone call, unanswered; then email	Show cause letter
Thu 26 Sep 2024, 10:58 / 11:18 am	Line Manager telephone call, unanswered; then text	Show cause letter
Thu 26 Sep 2024	SHOW CAUSE LETTER signed by Ms Anne Coccetti, Executive Director (K-CF24/3196). Seven calendar days to respond. Quotes Award clause 9.6	Show cause letter
Mon 16 Sep 2024	Application for review lodged with the Regulator	Repo
Wed 2 Oct 2024	HopgoodGanim engaged by the Office of Industrial Relations , \$13,200	OIR contract disclosure
Thu 3 Oct 2024	His response received by Human Resources	Confirmation letter
Wed 9 Oct 2024, 4:10 pm	CONFIRMATION LETTER transmitted by Ms Faiza Firoz, signed Mr Steven Johns, A/Executive Director (K-CF24/3270). Nominates the separation date as 20 September 2024	Confirmation letter · email header
Fri 11 Oct 2024, 3:15 pm	His reply sent — contests the letter, asserts protected status, work capacity certificate provided, upcoming psychiatric appointment, requests leave and entitlements be actioned	Reply email
Tue 22 Oct 2024	Review decision made — day 25 of the 25 business days	Review Decision
Thu 24 Oct 2024	Reasons for decision dated and issued	Review Decision
Fri 25 Oct 2024	Reinstatement application TD/2024/110 stamped	Repo
Tue 26 Nov 2024	Notice of Appeal filed	Repo

★ The structural problem — on the employer’s own quoted clause

The show cause letter sets out Award clause 9.6(c) in full:

*“Termination of employment by abandonment in accordance with clause 9.6 will operate as from the date of the employee’s: (i) last attendance at work; or (ii) last absence in respect of which consent was granted by the employer; or (iii) last absence in respect of which the notification was given to the employer by the employee, **whichever is the latter.**”*

On the employer's own findings the three candidate dates are: **3 June 2024** (last attendance), **12 June 2024** (last consented absence), and the last notified absence — on their account either **21 June** or **15 July 2024**.

The separation date nominated is 20 September 2024. That is none of the three, and it is not the latter of them. It is the day after the date the letters give for the WorkCover decline. Clause 9.6(c) does not provide for it.

■ Four further date conflicts on the face of the documents

#	Conflict
1	The show cause letter is signed and dated 26/09/2024 . The confirmation letter refers to it as <i>"the letter from Ms Anne Coccetti... dated 27 September 2024"</i> . The seven-day response period runs from a date the two documents state differently.
2	The show cause letter says the last day of work "will be considered to be 19 September 2024" . The confirmation letter nominates the separation date as 20 September 2024 . One day apart, and neither is a clause 9.6(c) date.
3	Both letters state the claim was declined on 19 September 2024 . The repository and the Respondent's own list of documents record WorkCover's reasons for decision as 13 September 2024 . ■ Pin which is correct before either is relied on.
4	The Amended Statement of Facts and Contentions at paragraph 43 pleads <i>"On 8 October 2024 my employment was terminated"</i> . No document supports 8 October . The letter is transmitted 9 October and nominates 20 September. ■ This is the Appellant's own pleading and it should be corrected or explained before 9 September 2026.

What this closes, and what it opens

CLOSED — the last day worked. Recorded in the working papers as "about 3 June 2024" and unverified. It is now confirmed in writing by the employer: **3 June 2024**. ★ That changes the pay-cycle analysis: the pay run of **19 June 2024** covered no worked days, so the correction of 28 May 2024 had **only one** opportunity to reach him while working — **5 June 2024**, not two.

OPENED — a documented Regulator-to-employer channel. The confirmation letter records: *"MSH has received correspondence from the **Office of Industrial Relations** regarding your application to review the decision made by WorkCover Queensland..."* Ordinary — the employer was a party and made submissions on 15 August and 6 September 2024 — but it is the first documented instance of that channel, and it is in their own letter.

USEFUL — their own dating of last contact. *"Ms Reece and Ms Taylor have confirmed the last correspondence they have received from you was on 15 May 2024 and 21 June 2024 respectively."* The 21 June date is **after** the last shift and **after** the pleaded injury, which sits against the no-contact framing.

■ Handling

This is employment-track material. The abandonment is pleaded in the appeal only at Part B item 3 as subsequent aggravating conduct, and the Respondent contends at paragraph 25 of its own pleading that post-injury matters are not relevant. **Use the 3 June date, which is squarely relevant to the pay cycle. Fix the paragraph 43 discrepancy because it is the Appellant's own. Do not run the clause 9.6(c) point in the appeal — it belongs to the reinstatement matter, which succeeded, and raising it here invites the relevance objection the Respondent has already flagged.**